

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Team # 3	CCRB Case #: 201409266	☐ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Sunday, 09/07/2014 11:55 PM	Location of Incident: West Burnside Avenue and University Avenue	18 Mo. SOL 3/7/2016	Precinct: 46
Date/Time CV Reported Mon, 09/08/2014 12:28 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 09/08/2014 12:28 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Ivane Epitashvili	01837	953839	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Fabian Nembhard	10634	955258	PBBX
2. SGT Tell Beharry	00058	927910	PBBX
3. POM Timothy Daly	00694	903738	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Ivane Epitashvili	Off. Language: PO Ivane Epitashvili made remarks to § 87(2)(b) based upon ethnicity.	A . Unsubstantiated

Case summary

On September 7, 2014, at approximately 10:40 p.m., § 87(2)(b) drove on University Avenue and made a right turn onto West Burnside Avenue in the Bronx. § 87(2)(b)'s wife, § 87(2)(b) sat in the passenger seat. Once § 87(2)(b) completed the turn, a marked police vehicle immediately pulled him over using lights and sirens. PO Ivane Epitashvili and PO Fabian Nembhard, both of the Patrol Borough Bronx, exited the police vehicle.

PO Nembhard approached the passenger side, while PO Epitashvili approached the driver's side and asked for license and registration. § 87(2)(b) complied and asked PO Epitashvili if he spoke Spanish. PO Epitashvili replied that he did not. § 87(2)(b) then asked § 87(2)(b) to ask PO Epitashvili why he had been pulled over. PO Epitashvili responded that § 87(2)(b) had failed to signal before turning.

PO Epitashvili left the vehicle to write § 87(2)(b) a summons. When he returned, § 87(2)(b) stated that he had a question but could not communicate well in English. PO Epitashvili allegedly stated, "This is America, you should speak English" (**Allegation A**).

§ 87(2)(b) refused to take the summons and told PO Epitashvili that he was being discriminated against because there were plenty of officers who could speak Spanish. PO Epitashvili put the summons on § 87(2)(b)'s dashboard, instructed him to take it and then returned to his vehicle to leave the scene.

§ 87(2)(g)

Mediation and Criminal History

This case was not eligible for mediation because the subject officer could not be confirmed until after PO Epitashvili was interviewed.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB History

- PO Epitashvili has been a member of the service for 1 year and this is the first CCRB complaint filed against him (encl.A1)
- This is § 87(2)(b)'s first CCRB complaint (encl.A2).

Potential Issues

- PO Tell Beharry and PO Timothy Daly were listed as witness officers but it is undisputed that they remained in the RMP for the entirety of the incident. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Epitashvili acknowledged his interaction with § 87(2)(b) during the car stop.

Allegations not pleaded

- **Threat of arrest:** § 87(2)(b) alleged that PO Epitashvili told § 87(2)(b) “If you don’t be quiet, I’m going to take you out of the car and arrest you.” However, § 87(2)(b) who would have been a victim, did not make this allegation. § 87(2)(g)

Allegation A-Offensive Language: PO Ivane Epitashvili made remarks to § 87(2)(b) based upon ethnicity.

In the statement provided to the CCRB on September 17, 2014 (encl. D1-D2), § 87(2)(b) alleged that after PO Epitashvili came back to give him the summons, PO Epitashvili said “This is America, you should speak English.”

In the statement provided to the CCRB on December 4, 2014 (encl. F1-F2), § 87(2)(b) corroborated § 87(2)(b)'s allegation and added that PO Epitashvili said, “You’re supposed to know English when you live here because I don’t speak Spanish. I’m also not required to learn Spanish to speak to you.” § 87(2)(b) recalled PO Epitashvili making the rude remarks before leaving to write the summons

In the statement provided to the CCRB on November 17, 2014 (encl. G4-G5), PO Epitashvili denied making any comments to § 87(2)(b) regarding his inability to speak English. PO Epitashvili stated that § 87(2)(b) understood everything he said in English and thus, he never felt the need to question § 87(2)(b) on his ability to speak English.

In the statement provided to the CCRB on January 8, 2014 (encl. H4-H5), PO Nembhard claimed that he did not hear the conversation between PO Epitashvili and § 87(2)(b) and denied hearing PO Epitashvili say “This is America, you should speak English” to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation A** be **Unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date